

Court No. - 9

Case :- WRIT - C No. - 29036 of 2008

Petitioner :- M/S Silvertown Papers Ltd. And Another

Respondent :- Pashchimanchal Vidyut Vitram Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal, Seema Agrawal

Respondent Counsel :- A.S.G.I., A.N. Singh, H.P. Dubey

Hon'ble D.S.R. Varma, J.

Hon'ble Sabhajeet Yadav, J.

On the request of the counsel for the petitioners, list the matter after two weeks.

Order Date :- 24.1.2011

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Petitioner Counsel :- Mayank Agrawal, Seema Agrawal

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Hon'ble D.S.R. Varma, J.

Hon'ble Abhinava Upadhya, J.

On the ground of illness slip of Seema Agrawal, learned counsel for the petitioners, case is passed over for today.

Order Date :- 23.2.2011

Pr/-

Court No. - 3

Case :- WRIT - C No. - 29036 of 2008

Petitioner :- M/S Silverton Papers Ltd. And Another

Respondent :- Pashchimanchal Vidyut Vitram Nigam Ltd. And Others

Counsel for Petitioner :- Saroj Giri

Counsel for Respondent :- A.S.G.I., Nipendra Mishra

Hon'ble Pritinker Diwaker,J.

Hon'ble Saral Srivastava,J.

Heard Sri Saroj Giri, learned counsel for the petitioners, Sri Nipendra Mishra, learned counsel for respondent nos. 1 and 2 and Sri Ghanshyam Dwivedi, learned counsel for the State.

This petition relates to the payment of additional security for supply of electricity with the warning that if the payment of security is not made within the stipulated period, appropriate action would be taken in accordance with law. The petitioners have also challenged the provisions contained in clause (1) of Para 4.20 of the Electricity Supply Code, 2005, insofar as it provides 'as and when the distribution licence provides a choice to consumer to opt' being ultra vires the provisions of sub-section (5) of Section 47 of the Electricity Act, 2003.

Learned counsel for the petitioners fairly submits that number of identical matters have already been dismissed by this Court vide judgment dated 21.3.2017 passed in lead case **Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others)**. He submits that said judgment is already subject matter before the Apex Court and as such in the present petition also similar order can be passed.

Considering the fair submission of learned counsel for the petitioners, the present petition is also dismissed in terms of order dated 21.3.2017 passed by this Court in a bunch of cases lead case Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others).

The writ petition is, accordingly, ***dismissed***.

Order Date :- 15.11.2018

Israr/Sattyarth